

25STCV19671 25STCV19671

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-06-23

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Case Number: 25STCV19671 Hearing Date: June 23, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

June 23, 2026

CASE NUMBER

25STCV19671

MOTION

Motion to Permit Service on Secretary of State

MOVING PARTIES

Plaintiffs NBM LLC, 122-128 Hayworth LLC, and 122 Hayworth

LLC

OPPOSING PARTY

None

MOTION

Plaintiffs NBM

LLC, 122-128 Hayworth LLC, and 122 Hayworth LLC ("Plaintiffs") seek leave to serve Defendant Affordable Living for the Aging ("Defendant") through the Secretary of State.

ANALYSIS

If, despite reasonable diligence, a party is unable to serve summons on a corporation's agent for service of process, or the corporation's president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, or a general manager, a party may serve the corporation via the Secretary of State. (Code Civ. Proc., § 416.10, subd. (d).) The party seeking to serve the corporation through the Secretary of State must obtain a court order which authorizes hand delivery to the Secretary of State or the Secretary's assistant or deputy. (Corps. Code, § 1702, subds. (a), (d).) The party must show it has been unable to serve the corporation by way of another authorized method. (Corps. Code, § 1702, subd. (a).)

Plaintiffs have submitted the declaration of their counsel, Jacob Reich ("Counsel") who avers Counsel engaged in significant efforts to serve Defendant, was able to reach Defendant's registered agent for service of process, Helen Hsieh ("Hsieh") by phone, and Hsieh informed him

Defendant does not maintain any physical offices at which Counsel could serve

Defendant, but Defendant is reachable only by mail or email. (See Declaration of Jacob Reich, ¶¶ 24-28.)

The motion is, therefore, granted. Plaintiffs may serve Defendant by way of the

Secretary of State. Nonetheless, the

Court also directs Plaintiffs to serve Defendant with the summons and complaint

by mail at 937 N. Fairfax Avenue in West Hollywood, with the notation "Office

Mailbox," and by email at and

.

Plaintiff is also ordered to serve a copy of the

Court's ruling concerning this motion on Defendant by mail and email and to

file proof of service of same.